

1 conduct -- excuse me. Ms. Walsh lied to Mr. Russell
2 and agreed to that condition that she would return
3 within a few weeks, knowing that she was not going to
4 return. And upon returning to New York, Ms. Walsh
5 filed a custody petition against him in New York.
6 The custody issue is not at issue here, but that's
7 just to give you some context.

8 Ms. Walsh's conduct was extreme and outrageous
9 and had harmful effects on Mr. Russell. At the end
10 of the case, we will ask you to compensate
11 Mr. Russell for any economic damages he suffered as a
12 result of Ms. Walsh's conduct. We'll also ask you to
13 compensate Mr. Russell for his pain and suffering.
14 And most importantly, I think, we will ask you to
15 send a message to Ms. Walsh and anyone else who
16 thinks about engaging in this type of conduct, that
17 this conduct was unacceptable.

18 And I'm going to ask you to punish Ms. Walsh
19 for her outrageous conduct by awarding punitive
20 damages. The judge will explain to you under the law
21 what constitutes punitive damages and when they can
22 be given. But punitive means to punish, and we're
23 going to ask you to give an award, punishing
24 Ms. Walsh for her conduct. So although this is not a
25 criminal case, you're still able to issue or give the

1 punishment for outrageous conduct, as the judge will
2 instruct you.

3 As the Court also instructed you just a few
4 moments ago, opening statements -- mine,
5 Ms. Walsh's -- are not evidence. It's just a preview
6 of what we expect to prove through the evidence.
7 I've given you my preview, and you should hold me to
8 my burden of proving my case by a preponderance of
9 the evidence, 51 percent to 49 percent. That's what
10 I'm required to do. Hold me to that.

11 Now, I expect that Ms. Walsh, who is not an
12 attorney, will tell you a lot of things about her
13 side of the story in her opening statement, and it
14 may feel to you like she's testifying, since it's
15 coming directly from her and not through an attorney.
16 Please remember that none of what she says in her
17 opening statement is evidence. It is not her
18 testimony. It is just an unusual circumstance here,
19 but she's going to give you a preview of what she
20 suspects the evidence will show.

21 So at the end of the case, ask yourself, for
22 both sides, did the evidence that you heard match the
23 preview. I'm telling you what I expect the evidence
24 will show. Ask yourself, Did the evidence show that?
25 Similarly, think about what Ms. Walsh tells you in



1 her opening statement and ask whether or not the
2 evidence showed what she said it was going to show.

3 As you listen to the evidence, please use your
4 common sense. It's best tool that you have at your
5 disposal. Apply the instructions that the Court gave
6 you, and in the end I'm confident that you'll find
7 Ms. Walsh liable for the claims of battery,
8 intentional infliction of emotional distress, and
9 domestic violence. Thank you.

10 MS. WALSH: Yeah, I would like to make an
11 opening statement, if that's okay.

12 THE COURT: Very well.

13 MS. WALSH: As you saw yesterday, I got upset,
14 so I'm going to try my best not to.

15 As you know, my name is Tara Walsh, age 37,
16 and I'm the defendant in this action and being sued
17 by Steven Russell. I was involved with him, and we
18 have a daughter in common. Her name is Evelyn, or
19 Evie, and she's four years old. Both Evie and I live
20 in New York and have since she was born.

21 I just want to say in this case that
22 Mr. Waller said a bunch of things, but ultimately the
23 truth matters, and he will not be able to prove what
24 he told you with the truth. The evidence will show
25 that Mr. Russell has a lengthy history of domestic

1 violence, substance abuse, and severe mental
2 illnesses and disturbances. The evidence will show
3 the abuse that I was subjected to by this individual
4 as well as the danger he put our daughter in. The
5 evidence will show that throughout our relationship,
6 Mr. Russell abused me in many ways.

7 I don't -- maybe can I sit down here and read
8 it?

9 THE COURT: You may.

10 MS. WALSH: I think it would be easier.

11 Okay. So Mr. Russell abused me in many ways.
12 He constantly verbally abused me. He controlled
13 where I went and who I could hang out with. He
14 isolated me from my friends and family. He
15 repeatedly threatened and intimidated me. He
16 destroyed my personal property. He violated my
17 privacy. He stopped me. He pressured me to commit
18 felonies. He financially controlled me. He
19 physically assaulted me. He sexually assaulted me.
20 He threatened to kill me. He -- and he forcibly
21 confined our daughter and I during the period we were
22 visiting him in San Francisco shortly after Evie was
23 born.

24 The evidence will show that after Evie's
25 birth, when I went to San Francisco to visit

1 Mr. Russell, he held me there against my will. To
2 make matters worse, Mr. Russell had an arsenal of
3 weapons in our home, including guns. The evidence
4 will show that after years of abuse at the hands of
5 Mr. Russell, I lived in a perpetual state of
6 survival, fear, and other hopelessness. I'm highly
7 confident that if I had not escaped Mr. Russell, I
8 likely would not be alive today.

9 My evidence will show that Mr. Russell has
10 suffered from extreme mental disturbances dating back
11 to 2016. He has a lengthy history of abusing drugs
12 and almost died from an overdose of cocaine in
13 December of 2015. Mr. Russell never got professional
14 treatment for his issues, but instead made the
15 decision to self-medicate. He also relied on those
16 close to him to monitor him, including myself and his
17 mother, and to help him stay off drugs and get
18 healthy. When Mr. Russell began displaying
19 irrational, dilution, dangerous behavior at the end
20 of 2016, this continued until the day I fled
21 San Francisco with our daughter in early June of
22 2018. Mr. Russell's psychotic behavior best mimics
23 what I understood to be schizophrenia.

24 MR. WALLER: Objection.

25 THE COURT: Sustained.



1 MS. WALSH: My evidence will show he believed
2 the Russians and CIA were spying on him and drugging
3 him. He saw people standing in corners, that were
4 not there, holding knives and weapons. He spent
5 hours decoding a message from aliens on the carpet of
6 his home. He stocked up on guns, knives, and Tasers.
7 He believed he had metal particles in his body
8 planted by agents that could be activated by things
9 such as drones and to make him feel microwaves.

10 MR. WALLER: Objection, Your Honor.

11 THE COURT: Sustained.

12 MS. WALSH: I have a video where he's saying
13 that.

14 THE COURT: Well, there -- we've already
15 discussed this matter, Ms. Walsh. You must be
16 mindful of my earlier rulings in this case.

17 MS. WALSH: And what was that, Your Honor?

18 THE COURT: That the topic of his mental
19 health -- Mr. Russell's mental health condition is
20 essentially off limits unless you can tie it to this
21 event here.

22 MS. WALSH: Yes. Part of why I acted in
23 self-defense was because he was psychotic. I mean, I
24 have to be able to --

25 THE COURT: The Court has ruled. Continue,

1 please. Objection sustained. You cannot speak to
2 that issue.

3 MS. WALSH: Okay. Well, I can speak to his
4 behavior.

5 He consumed poison, such as turpentine, to
6 kill his infections. He thought a whole plane ride
7 was filled with agents and that poisonous gas leaked
8 into the plane on his trip. He frequently complained
9 of being drugged and poisoned and was brought to the
10 emergency room. He identified neighbors and friends
11 as being spies and claimed they poisoned him. He had
12 a head shot list of identified agents with names like
13 Baldy. He told me every white van had spies in them.
14 He destroyed his homes and mine looking for spying
15 devices he wrapped in aluminum foil and sent to the
16 FBI to be tested. He ran toxic ozone machines in our
17 homes and set fire in the homes. He ran weird light
18 machines and blocked all the windows to prevent
19 devices from shining in. He believed poisonous gas
20 was leaking from walls and vents. He was poisoned by
21 a swipe by -- what do you call those, a swipe by from
22 an Asian man at a charity event. He wore EMF
23 protective clothes and looked at his skin under
24 microscopes for hours and hours. He told me
25 fireflies were drones. He believed that I was a

1 real-life fairy with magical powers.

2 The evidence will show he spent hundreds of
3 thousand dollars a month on a full-time security
4 team, one of which convinced him to give him a
5 million dollars, who he later sued. Mr. Russell also
6 thought that I was being poisoned and targeted. He
7 pressured me to undergo bizarre and dangerous medical
8 treatments, such as getting ozone pumped into my
9 blood and injecting myself with various hormones.

10 My evidence will show that Mr. Russell abused
11 any drug he could get his hands on. He took these
12 drugs willingly and enjoyed the effects.

13 MR. WALLER: Objection.

14 THE COURT: Sustained.

15 MS. WALSH: Okay. On a daily basis
16 Mr. Russell drank heavily and mixed alcohol with
17 drugs. What he did so, he often became violent. My
18 evidence will show I sacrificed my own wellbeing to
19 protect and care for Mr. Russell. No matter how hard
20 I tried, I could not get him to stop abusing drugs
21 and abusing me.

22 The evidence will show I went through
23 exhaustive measures to get Mr. Russell treatment.
24 His family and I planned interventions. I begged
25 nurses and doctors in the ER to submit him for

1 psychiatric care. I told his doctors and my doctors
2 about his behavior, including our shared doctors. He
3 hired security guards to protect him, many of whom
4 were former police officers, and I begged them for
5 help.

6 The evidence will show that prior to our
7 daughter's birth, I lived in New York City and
8 Brooklyn, New York, not in San Francisco. Although I
9 visited Mr. Russell in San Francisco, I've always had
10 my own home in New York. In 2017 in Brooklyn, I
11 spent months setting up the apartment for our
12 daughter, finding her the best doctors and
13 activities.

14 Mr. Russell spent my pregnancy engaging in
15 increasingly severe forms of domestic abuse. When he
16 stayed with me in Brooklyn, he would often stay out
17 all night and tell me things, like he was sleeping
18 with other girls, upon his return. He forced me to
19 give him oral sex while he was watching porn. He
20 yelled at me -- he yelled at me, broke my cell phone,
21 and put a hole in the living room. He installed
22 secret cameras in my Brooklyn apartment. He often
23 called me fat, disgusting, and said he would never
24 love me. He often raised his hand as if to threaten
25 to strike me, and often would leave me sobbing on the

1 floor, begging him just to be kind to me and that he
2 was hurting the baby from the stress.

3 Concurrently, he continued his -- what I
4 consider to be mental disturbances, including
5 destroying my homes looking for spying devices, but
6 no matter how hard I tried to leave, I still thought I
7 loved him and that after the baby was born, he would
8 get help and be kind. I also desperately wanted to
9 be a family and always was able to see glimmers of
10 good in Mr. Russell.

11 Weeks before -- weeks before our daughter's
12 due date, after weeks telling me earlier he did not
13 love me, Mr. Russell professed his undying love and
14 wished to be a family before returning to see me in
15 New York. The first night, he entered my apartment
16 with the security guard, who pulled out a gun like it
17 was a toy. That night he accused our friend Chris,
18 who set us up originally --

19 MR. WALLER: Your Honor, I have to object
20 because she's really testifying.

21 MS. WALSH: I mean -- but Brian, you said
22 things --

23 MR. WALLER: She's not -- the evidence, how
24 she's going to prove anything. She's testifying,
25 like I said she was going to do, and a lot of this --

1 MS. WALSH: I have --

2 MR. WALLER: -- and she's poisoning the jury
3 by testifying.

4 THE COURT: All right. Okay. So the
5 objection is that -- let's -- the objection is
6 sustained.

7 Ms. Walsh, I can appreciate that you want to
8 lay out what you think you're going to present in
9 your case, but let's see if we can narrow the focus
10 to the incident here, which is what's really at issue
11 before the Court and the jury. Okay.

12 MS. WALSH: Yes.

13 THE COURT: If you want to lay out some of
14 that stuff during the presentation or your evidence
15 or through cross-examination, you're welcome to do
16 so. It's always subject to rules of relevancy and
17 some of the pretrial motions that we dealt with. So
18 you must be mindful of those rulings as you proceed
19 with this case. You --

20 MS. WALSH: Respectfully, Your Honor,
21 Mr. Waller included things that we had talked about
22 in limine in his opening statements and stuff.

23 THE COURT: Yes, but it was incumbent upon you
24 to raise an objection. Otherwise there's nothing I
25 can do. So the Court is not here to inject its own